

26STCV07811 26STCV07811

County: los-angeles

Division: Civil Law and Motion

Department: 407

Hearing date: 2026-08-18

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C407%2C08%2F18%2F2026

Source SHA-256: 384f974c00c0b1d7bca29f8798aba002b9011d06c6d0be14daf2ee35466a886e

Case Number: 26STCV07811 Hearing Date: August 18, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: August

18, 2026 TRIAL DATE: Not set

CASE: Oscar

Chun-Fong Chan v. Harris Chun-Hoi Chan, et al.

CASE NO.: 26STCV07811

DEFENDANT

WINNIE LI-MEI CHAN'S SPECIAL MOTION TO STRIKE

PORTIONS

OF COMPLAINT PURSUANT TO CCP §425.16

MOVING

PARTY: Defendant Winnie

Li-Mei Chan

RESPONDING PARTY: Plaintiff

Oscar Chun-Fong Chan

Defendant Winnie Le-Mei Chan

("Winnie") and Yiu-Kai Chan ("Yiu-Kai") were married for nearly three decades and had two children, plaintiff Oscar Chun-Fong Chan ("Plaintiff" or "Oscar") and

defendant Harris Chun-Hoi Chan ("Harris").

In 2022, Winnie and Yiu-Kai legally separated. The separation caused a schism in the family, with Oscar siding with Yiu-Kai and Harris siding with Winnie. Yiu-Kai, who has resided in China since the separation, entrusted Oscar with the management of his assets in the United States. Due to disagreements about family assets, the relationship between Oscar, on one hand, and Winnie and Harris on the other, deteriorated. Various physical altercations occurred between Oscar and Harris.

Winnie alleges she has lost access to much of the family home because Oscar changed the locks. In response to Oscar's conduct, Winnie filed various legal actions, including but not limited to, unlawful detainer action (Case No. 24PDUD03549), complaint to recovery community property (Case No. 24NNCV04824), probate petition to determine claim to property (Case No. 24STPB11153), domestic violence action (Case No. 24PDR001975), and appeal of the domestic violence action (Case No. B346270). These cases were either dismissed or decided in favor of Oscar.

In 2026, Oscar filed this action against Winnie and Harris. As relevant here, Oscar brings claims for intentional infliction of emotional distress, abuse of process, and malicious prosecution arising, in part, from the filing of the above-mentioned legal actions.

I. INTRODUCTION

On March 10, 2026, Plaintiff commenced this action against Harris and Winnie.

On June 22, 2026, Winnie (hereafter, "Defendant") filed this special motion to strike the third cause of action for intentional infliction of emotional distress, fifth cause of action for abuse of process, and seventh cause of action for malicious prosecution from the Complaint.

On July 6, 2026, Plaintiff filed an opposition.

On August 11, 2026, Defendant filed a reply.

II. DISCUSSION

Defendant's

motion is untimely.

"A special motion to strike must be filed within 60 days after service of the complaint on the defendant, unless the trial court exercises its discretion to consider a later-filed motion." (*Chitsazzadeh v. Kramer & Kaslow* (2011) 199 Cal.App.4th 676, 682; Code Civ. Proc. (CCP), § 425.16, subd. (f).) "The purpose of the time limitation is to permit the defendant to test the foundation of the plaintiff's action before having to devote its time, energy and resources to combating a meritless lawsuit." (*San Diegos for Open Government v. Har Construction, Inc.* (2015) 240 Cal.App.4th 611, 624 (cleaned up).)

"[T]he

Legislature's act in allowing an interlocutory appeal of the denial of an anti-SLAPP motion is clearly tied to the fact that the statute contemplates that most such motions will be filed within 60 days of the filing of the complaint." (*Platypus Wear, Inc. v. Goldberg* (2008) 166 Cal.App.4th 772, 787.) Thus, a "trial court must be wary about freely granting a party the right to file an anti-SLAPP motion past the 60-day deadline." (*Ibid.*) "Discretion to permit or deny an untimely motion cannot turn on the final determination of the merits of the motion." (*Olsen v. Harbison* (2005) 134 Cal.App.4th 278, 286.)

Here, Defendant

was served with the Complaint on April 10, 2026. (See Proof of Service by Substituted Service, filed 4/14/26.) This anti-SLAPP motion was filed more than 60 days later on June 22, 2026. The motion is untimely. To the extent Defendant contends her May 28, 2026 filing—Declaration of Demurring or Moving Party in Support of Automatic Extension (Form CIV-141)—extended the time to file her anti-SLAPP motion, Defendant is mistaken. As indicated on the face of Form CIV-141, that document concerns only the filing of a demurrer (CCP § 430.41), motion to strike (CCP § 435.5), or motion for judgment on the pleadings (CCP § 439).

III. CONCLUSION

Based on

the foregoing, the special motion to strike is DENIED.

Plaintiff is ordered to give notice,
unless waived.

Dated: August 18, 2026

Brock T. Hammond

Judge of the
Superior Court